

An Act

ENROLLED SENATE
BILL NO. 1833

By: Thompson, Hamilton, and
Bullard of the Senate

and

West (Tammy), Cantrell, and
Hall of the House

An Act relating to the Supplemental Nutrition Assistance Program (SNAP); directing the Department of Human Services to seek certain federal waiver; authorizing certain additional waiver; describing waiver; specifying implementation deadline; requiring submission of certain annual report; providing for codification; and providing an effective date.

SUBJECT: Supplemental Nutrition Assistance Program (SNAP)

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 241.5 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. The Department of Human Services, subject to receipt of federal approval as described in subsection B of this section:

1. Shall prohibit the use of Supplemental Nutrition Assistance Program (SNAP) benefits for the purchase of candy and soft drinks; and

2. May exclude any other foods the Director of Human Services deems a nonnutritive food item.

B. The Department shall submit a request for a federal waiver to the United States Department of Agriculture Food and Nutrition Service to seek authorization to implement the provisions of

paragraph 1 of subsection A of this section and may seek authorization, either through the initial waiver request or through one or more subsequent waiver requests, to implement the provisions of paragraph 2 of subsection A of this section. Any such waiver request shall include:

1. A justification citing:

- a. public health concerns,
- b. SNAP's statutory intent, and
- c. cost savings to taxpayers;

2. An implementation plan ensuring that existing point-of-sale systems used by retailers in this state have the ability to properly enforce the restriction;

3. A strategy for education and outreach informing SNAP recipients of alternative healthy food options; and

4. A reporting mechanism to track the impact of the waiver, including spending patterns and health outcomes.

C. If the waiver is approved, the Department shall implement the restrictions within six (6) months of receiving federal authorization.

D. The Department shall electronically submit an annual report to the President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the Governor that includes:

- 1. The status of the waiver request;
- 2. Data on SNAP spending patterns in this state; and
- 3. Any identified challenges or recommendations for further policy action.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 23rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____